

tangible thing described in the deposition notice.” (emphasis added.) The parties are required to meet and confer, or in the case of a non-appearance, the moving party inquired about the non-appearance. (CCP §2025.450(b)(2).) Plaintiff engaged in meet-and-confer efforts over several months. (Acosta Decl., ¶¶ 6-9.)

Defendant served an objection based on the witness’s unavailability. For the examination categories, Defendant solely objected that the categories and document requests are vague, ambiguous, overbroad, burdensome, attorney-client privilege, attorney-work product doctrine, documents prepared for litigation, evidence of subsequent remedial measures, and other boilerplate objections.

Here, Defendant’s objections are not valid. An objection to a deposition notice is proper only if based on any error or irregularity in the notice itself. (CCP §2025.410(a).) These include service, location of the deposition, time limits, etc. A party may challenge the production via an inadequate description or unjustly burdensome. (CCP §2025.410(a), (c).) Any other challenge such as privilege, relevance, etc. may be challenged via protective order. (Weil & Brown, California Practice Guide: Civil Procedure Before Trial §8:531 (Rutter Group 2026).) Serving an objection is not a substitute for a motion for protective order. (See *Snyder v. Superior Court* (1970) 9 Cal.App.3d 579, 586 (applying former CCP §2021).) Or, Defendant could have filed a motion to quash. (CCP §2025.410(c).) Unavailability is not a valid objection. Nor has Defendant shown that inadequate description or unjustly burdensome applies to any of the categories at request. The opposition merely contends it produced documents, and that Plaintiff did not meet and confer in good faith. Therefore, its objections based on unavailability, and its objections to the document requests, were not valid objections.

Accordingly, the court should grant the motion and order Defendant to produce a PMK witness and documents within 30 days.

Plaintiff requests \$2,500 sanctions as part of the motion. (CCP §871.26(j)(2).) The statute provides that “a court **shall** impose... a two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney... for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (*Id.*, emphasis added.) The sanction is mandatory unless “the party failing to comply... shows good cause for the noncompliance.” (*Id.*, § 871.26, subd. (j).)

Here, Defendant argues that the witness’ sudden unavailability constitutes good cause. However, Defendant did not make a proactive effort to reschedule after both cancellations and had still not proposed new dates when Plaintiff filed its reply. This negates the good cause exception. Statutory award of \$2,500 in sanctions against the defense attorney.

4.

CASE #	CASE NAME	HEARING NAME
RIC1702632	MASLOUB VS MASLOUB	MOTION FOR ORDER AUTHORIZING SALE OF MJ VENTURES PROPERTIES AND APPLICATION OF PROCEEDS

Tentative Ruling:

DENY the motion; DENY Maher's request for sanctions without prejudice.

This is a breach of contract case. Plaintiff Marwan Masloub ("Plaintiff") and Maher Masloub ("Maher") are brothers. In December 2009, Plaintiff executed a durable power of attorney authorizing Maher to act on Plaintiff's behalf in regard to banking transactions. Later, Maher enticed Plaintiff to loan him money to be used exclusively to purchase and improve foreclosed properties. The properties were to be purchased by Maher and Defendant MJ Ventures, which is a joint venture between Maher and Jay Salman ("Salman")¹. Over time, Maher withdrew \$484,900 from Plaintiff's bank account and deposited it in his own account. From March 8, 2012, through August 22, 2014, Maher assured Plaintiff that he and MJ Ventures (collectively "Defendants") used the funds to purchase properties. In April 2015, Plaintiff allegedly demanded payment, but Defendants refused to pay. Plaintiff alleges that Defendants made a few payments and then stopped paying. Plaintiff alleges that Maher misrepresented that the funds were used to purchase properties when in fact, the money was spent for Maher's personal use.

On February 15, 2017, Plaintiff filed his Complaint. He asserts eight causes of action for: (1) Breach of Oral Contract; (2) Promissory Estoppel; (3) Breach of Covenants of Good Faith and Fair Dealing; (4) Intentional Misrepresentation; (5) Negligent Misrepresentation; (6) Common Counts; (7) Unjust Enrichment; and (8) Accounting.

On January 28, 2019, the parties attended a Mandatory Settlement Conference (MSC), during which both parties agreed to the terms of a settlement agreement in open court ("Oral Agreement"). The material terms of the agreement provide that Defendants would liquidate their TD Ameritrade account and pay \$200,000 within five days of the execution of a written agreement. Defendants were also required to pay \$240,000 within seven months of the execution of the written agreement. Counsel met and conferred for several months in an effort to reduce the agreement to a writing including all the material terms. On December 31, 2019, Plaintiff's counsel sent to Defendants' counsel the final draft of the Settlement Agreement and Mutual Release of Claims ("Settlement Agreement"). Defendants did not sign the Settlement Agreement and have not made any payments.

On March 9, 2021, the Court signed an Order granting Plaintiffs motion to enforce the parties' settlement. On May 11, 2021, the Court signed the Final Judgment

¹ Salman was named as a defendant but was dismissed on 7/13/18.

awarding Plaintiff \$500,000 against Maher and the dba entity “MJ Ventures.” Salman moved to vacate the judgment on the ground it “erroneously” named MJ Ventures as a judgment debtor. On August 7, 2024, the Court denied the motion to vacate or modify the judgment. Salman appealed the ruling, which was affirmed and remittitur issued on January 23, 2026.

Salman now moves for an order authorizing the sale of the remaining MJ Ventures properties and application of proceeds toward satisfaction of the judgment entered in this action. Salman states MJ Ventures holds title to two remaining properties located in Barstow, California, which contain sufficient equity to satisfy the judgment.

In an untimely opposition, Maher argues the Court lacks jurisdiction to order the sale of property located in San Bernardino County. He argues the Court of Appeal found Salman lacked standing and is not an aggrieved party. Maher argues Salman is not a judgment creditor or debtor and cannot act on behalf of MJ Ventures. Maher argues Salman sued him in *Salman v. Maher Masloub* (Case No. RIC 1901756), which has since been transferred to San Bernardino County Superior Court and assigned Case No. CIVSB 2108105, where it is set for trial on August 3, 2026. He argues the motion is made in bad faith and requests \$4,500 in sanctions against Salman. (C.C.P., § 128.5.)

In reply, Salman argues the request for sanctions should be denied. There is no practical prejudice in proceeding with the proposed sale, and the Court has authority to consider the requested relief.

California Rules of Court, rule 3.1113(b) requires that a moving memorandum contain “a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,” and rule 3.1113(a) provides that the absence of such a memorandum “may be construed by the court as an admission that the motion is not meritorious.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 931.) There is notably no authority cited for the motion, only the bare assertion that “Courts have broad authority.” It is unclear what “broad authority” this non-party, non-judgment-creditor is relying on to compel the sale of a judgment debtor’s real property outside of this Court’s jurisdiction. This court is not required to make a motion for the moving nonparty.

The final issue is Maher’s request for monetary sanctions in opposition. Under Code of Civil Procedure section 128.5, subdivision (a), “[a] trial court may order a party, the party’s attorney, or both, to pay reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” To obtain sanctions under section 128.5, the motion must be brought separately from other motions, and a 21-day safe harbor period must be complied with. (Code Civ. Proc., § 128.5, subd. (f)(A) and (B).) Maher did not file a separate motion for sanctions; accordingly, the request FOR SANCTIONS IS DENIED without prejudice.